

But the court may relieve the party who fails to file a timely response if, before entry of the order deeming the requested matters admitted, the party in default (1) moves for relief from waiver and shows that the failure to serve a timely response was due to “mistake, inadvertence or excusable neglect”’ and (2) serves a response in “substantial compliance” with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (a)-(c); see also *Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1584, disapproved on other grounds in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983, fn. 12.) “If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion [¶] Everything, in short, depends on submitting responses prior to the hearing.” (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 26 Cal.App.4th 393, 395-396.)

Sanctions are mandatory unless the court finds that the party acted “with substantial justification” or other circumstances that would render sanctions “unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [document demands], 2033.280, subd. (c) [requests for admission].) Since no opposition was filed, no facts were presented to warrant finding sanctions unjust. The court finds it reasonable to allow only 2.5 hours for the preparation of these simple discovery motions at the hourly rate of \$400, provided by counsel, and \$246.60 for the cost of filing these motions. Therefore, the total amount of sanctions awarded is \$1,246.60.

Tentative Ruling

11

(41)

Tentative Ruling

Re: ***Sal Montano v. John Doe***
Superior Court Case No. 23CECG05132

Hearing Date: September 3, 2026 (Dept. 502)

Motion: By Defendant City of Fresno for Summary Judgment

Tentative Ruling:

To grant the defendant's motion for summary judgment. The City of Fresno is directed to submit to this court, within five days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

The plaintiff, Sal Montano (Plaintiff), alleges he slipped and fell while boarding a Fresno Area Express (FAX) bus. Plaintiff filed a form complaint for personal injuries based on motor vehicle negligence, general negligence, and premises liability for dangerous condition of public property against several defendants, including the City of Fresno (City). The City now moves for summary judgment. In the alternative, the City moves for summary adjudication as to the motor vehicle and general negligence causes of action.

Law Governing Summary Judgment and Summary Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., §437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In general, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.) The court must strictly construe the moving party's declarations and liberally construe the opposing party's declarations. (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 575 [affirming trial court's granting of employer's summary judgment motion]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [reversing summary judgment where evidence suggested strong possibility trier of fact would resolve issues in favor of moving defendant, but not necessarily so].) "A triable issue of fact is created when the evidence reasonably permits the trier of fact, under the applicable standard of proof, to find the purportedly contested fact in favor of the party opposing the motion." (*Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466, 475 [reversing summary judgment where genuine issues of material fact existed on consumer's strict products liability claim].)

The City Satisfies Its Initial Burden

The City contends it is entitled to summary judgment because Plaintiff cannot establish a dangerous condition or negligence in the operation of the FAX bus--this case simply involves an accident, for which the City cannot be liable as a matter of law.

To support its motion, the City's separate statement identifies 67 material "facts," (although the City improperly includes legal conclusions, in addition to facts). The relevant facts are as follows: Plaintiff slipped and fell while boarding FAX bus #0601 at 7:31 p.m. on January 2, 2023. (Fact No. 2.) The bus was not in motion at the time of the incident. (Fact No. 5.) The bus arrived at its regularly-scheduled stop at Fulton and Divisadero Streets to allow passengers to board and exit the bus. (Fact No. 14.) The bus was secured with the parking brake applied and knelt. (Fact No. 15.) When the doors of a FAX bus open to allow passengers to board, a light illuminates the entranceway. (Fact No. 16.)

Before boarding the bus, Plaintiff put his bike on the bike rack. (Fact No. 17.) Plaintiff was carrying grocery bags and "did not use the handrails as he boarded the bus because he 'didn't pay attention' and 'just wanted to go get on the bus.'" (Fact Nos. 18, 19.) "Plaintiff was looking forward as he boarded the bus." (Fact No. 20.) "Plaintiff fell as he took his first step onto the bus." (Fact No. 21.) Prior to the incident, it had been raining during the day. (Fact No. 23.) Plaintiff claims he fell because the bus was wet, but he did not see any water before attempting to board the bus, nor did he take any pictures. (Fact Nos. 25, 26, 27.) Shortly after the fall, the bus driver checked the area where Plaintiff fell and noted it was dry. (Fact Nos. 28, 29.) After the fall, the bus driver prepared an incident report wherein he described the incident at follows:

As a passenger boarded the bus, with the bus secured, parking brake applied, bus k[n]elt, carrying a bunch of items and not holding on to the door handles, he fell in the front doorway. He fell onto his belongings, not the bus floor. I asked if he was hurt. He said no but he hit his knees. I asked if he needed medical attention, he declined. I reported the incident to C12. I asked for his personal information. I also asked how he fell. He said he slipped because the curb and the bus floor was wet. At the next stop I checked the floor and it was dry. At B shelter.

(See Fact No. 31, City's evid., ex. E-1 [bus driver's rpt.].) Before the fall, the bus driver did not see any accumulating water on the floor at the entrance, nor did he see any defects or tripping hazards at the entrance at any time during his shift. (Fact Nos. 32, 33.)

The City's bus drivers routinely check their buses, including the entrance, for dangerous conditions. (Fact Nos. 60, 62.) When the driver of Bus #0601 inspected the bus, including an inspection 13 minutes before Plaintiff's fall, the driver did not observe any slippery substance, water or other tripping hazards at the start of his shift, or at any time during his shift, whether before or after Plaintiff's fall. (Fact Nos. 37, 52, 61, 64 [bus driver's decl., ¶¶ 9, 14, 15].)

First Cause of Action – Motor Vehicle Negligence

In the operative first amended complaint, Plaintiff alleges his first cause of action for negligent operation of a motor vehicle under Vehicle Code section 17001, which provides:

A public entity is liable for death or injury to person or property proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of the public entity acting within the scope of his employment.

In adopting Vehicle Code section 17001, the Legislature intended "to use the word 'operation' in its popular and ordinary sense as applied to motor vehicles." (*Chilcote v. San Bernardino County* (1933) 218 Cal. 444, 445 [construing Civ. Code, § 1714 1/4, the predecessor to Veh. Code, § 17001 (*Chilcote*).) As the California Supreme Court has consistently explained, "to be in operation, the vehicle must be in a 'state of being at work' or 'in the active exercise of some specific function' by performing work or producing effects at the time and place the injury is inflicted." (*Ibid.*)

The City cites *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, where the Supreme Court explained Vehicle Code section 17001 did not apply to the facts of that case because the wrongful conduct did not involve the operation of a motor vehicle:

The alleged negligence of the county and its employees in failing to provide a secure vehicle, in failing adequately to restrain plaintiff with devices such as a waist chain or leg chains or to handcuff plaintiff's hands behind her, and in failing to have one of the county employees sit in the back seat with plaintiff to prevent her from escaping, does not constitute negligent or wrongful conduct or omissions in the operation of a motor vehicle within the meaning of Vehicle Code section 17001. For that statute to apply, it is not sufficient that a motor vehicle somehow be involved in the series of events that results in the injury. The injury must be proximately caused by the negligent "operation of a motor vehicle."

(*Ladd v. County of San Mateo*, *supra*, 12 Cal.4th at p. 923.)

The City also cites *Hernandez v. City of Pomona* (2009) 46 Cal.4th 501, 520, where the Supreme Court reiterated the rule of *Chilcote*, that to meet the statutory requirement under Vehicle Code section 17001, which applies to an injury caused by a negligent or wrongful act in the operation of a motor vehicle, it is not enough that a motor vehicle is somehow involved. "Instead, the vehicle must be in a 'state of being at work' or 'in the ... exercise of some specific function' by performing work or producing effects *at the time and place the injury is inflicted*." (*Hernandez v. City of Pomona, supra*, 46 Cal.4th at p. 520, citing *Chilcote, supra*, 218 Cal. at p. 445, italics added by *Hernandez* court.)

The City correctly concludes Vehicle Code section 17001 does not apply to the facts of this case:

Similarly, here, while the bus was accepting passengers, the actual "negligent act" that Plaintiff complains of is the alleged condition of the bus and the allegation that it was wet or slippery. There are no factual allegations that the operation of the vehicle was negligent.

(Memo., p. 10:8-11.) The court finds the City meets its initial burden to show Plaintiff cannot prevail on his first cause of action for negligent operation of a motor vehicle under Vehicle Code section 17001.

Second Cause of Action - Negligence

The City correctly contends Plaintiff cannot prevail on his second cause of action for general negligence because the City is immune from liability for common law negligence. "Under the Government Claims Act [Act] (Gov. Code, § 810 et seq.), there is no common law tort liability for public entities in California; instead, such liability must be based on statute." (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897.) The Supreme Court has explained the basic structure of the Act as follows:

The basic architecture of the Act is encapsulated in Government Code section 815. Subdivision (a) of that section makes clear that under the [Act], there is no such thing as common law tort liability for public entities; a public entity is not liable for an injury "[e]xcept as otherwise provided by statute." (Gov. Code, § 815; see *Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897.) The [Act] provides several grounds for public entity liability, including, as relevant here, for injuries caused "by a dangerous condition of [a public entity's] property" that was created through an employee's negligence. (Gov. Code, § 835, subd. (a).)

(*Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803.)

In *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 980, the Supreme Court summarized the Tort Claims Act as follows (all quoted statutory references are to the Government Code):

[The Tort Claims Act] establishes the basic rules that public *entities* are immune from liability except as provided by statute (§ 815, subd. (a)), that public *employees* are liable for their torts except as otherwise provided by

statute (§ 820, subd. (a)), that public entities are vicariously liable for the torts of their employees (§ 815.2, subd. (a)), and that public entities are immune where their employees are immune, except as otherwise provided by statute (§ 815.2, subd. (b)). (*Italics original.*)

The City meets its burden to establish that Plaintiff cannot prevail on his second cause of action because the City is immune from liability for common law negligence.

Third Cause of Action – Premises Liability

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Government Code section 835, sets forth the conditions of a public entity's liability for a dangerous condition of its property, with certain inapplicable statutory exceptions, as follows:

[A] public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Government Code section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.) The City contends summary judgment is proper, *inter alia*, because Plaintiff cannot establish the required elements of premises liability—including a dangerous condition and notice.

On the element of a dangerous condition, the City cites *Buehler v. Alpha Beta Co.* (1990) 224 Cal.App.3d 729 (*Buehler*), a case where the plaintiff, an 84-year-old woman, carrying several items in her hands and not using a cart, slipped and fell in the defendant's store. The plaintiff did not know what she slipped on, but her theory was that the floor was improperly waxed. (*Id.* at p. 733.) There was an eyewitness to the fall who stated that she did not see why the plaintiff fell and, furthermore, she did not think the floor was slippery and did not observe any slippery substances on the floor. (*Id.* at p. 734.) In her deposition, the plaintiff testified that she did not notice any liquid or solid debris on the floor before or after she fell. Based on those facts, the appellate court stated "[c]onjecture that the floor might have been too slippery at the location where appellant happened to fall is mere speculation which is legally insufficient to defeat a summary judgment." The plaintiff in *Buehler* had no facts, either directly or indirectly of any circumstances from which negligence might be inferred. Therefore, the appellate court affirmed the trial court's decision to grant the motion for summary judgment. (As an independent reason to grant the motion, the trial court also noted the plaintiff failed to file a separate statement.) (*Ibid.*)

Here, the video evidence shows Plaintiff was wearing a backpack and carrying two large, full grocery bags as he attempted to board the bus without holding the handrails. He made a misstep and fell as he boarded the bus. (Fact Nos. 18, 22.) Plaintiff believes he fell because the bus was wet. (Fact No. 25.) Aside from his belief that the bus was wet, Plaintiff took no pictures and has no evidence that the bus was wet at the time and location of his fall. (Fact No. 27.) The bus driver checked the area where Plaintiff fell shortly after the fall, and at no time during his shift did he see a defect or tripping hazard at the entrance of the bus where Plaintiff fell. (Fact Nos. 28, 32, 33.) When asked at his deposition to describe where he slipped, Plaintiff explained: "I believe it was my first – my first step to get onto the bus. I stretched to get on and I – that's when I slipped." (Montano depo., ex. E-1, p. 17:22-24.).

The court finds the City meets its burden to show Plaintiff cannot establish the element of a dangerous condition. Plaintiff's testimony that he slipped because the bus was wet is simply conjecture that a dangerous condition existed. His testimony, without more evidence, is too speculative to constitute substantial evidence of a dangerous condition and thus, it is "legally insufficient to defeat a summary judgment." (*Buehler v. Alpha Beta Co.*, *supra*, 224 Cal.App.3d at p. 734.) Accordingly, the City demonstrates Plaintiff has no evidence to prove the existence of a dangerous condition that caused Plaintiff's fall. Without such evidence, Plaintiff cannot establish an essential element of his cause of action.

In addition to the lack of a dangerous condition, the City contends Plaintiff has no evidence to show the City had actual or constructive notice of the alleged dangerous condition of its property. In general, "questions of whether a dangerous condition could have been discovered by reasonable inspection and whether there was adequate time for preventive measures are properly left to the jury. [Citations.]" (*Carson v. Facilities Development Co.* (1984) 36 Cal.3d 830, 843 [trial court erred in granting city's nonsuit motion because jury could have inferred city had constructive knowledge of dangerous condition created by encroaching sign].)

The City correctly argues that because Plaintiff asserts the City failed to address a dangerous condition, which no City employee created (Fact Nos. 57, 58), Plaintiff must prove the City had actual or constructive notice of the condition. The California Supreme Court has determined that generally, the jury must resolve the notice issue on a case-by-case basis, with no exact time limit:

Whether a dangerous condition existed long enough for a reasonably prudent person to have discovered it is ordinarily a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances.

(*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1207 [affirming jury verdict that defendant's failure to inspect premises within a reasonable time was sufficient for inference that spilled milk was on floor long enough to give defendant chance to discover and remedy it].)

A plaintiff may use circumstantial evidence and inferences to prove an entity should have discovered a dangerous condition:

[A] plaintiff may prove a dangerous condition existed for an unreasonable time with circumstantial evidence, and ... "evidence that an inspection had not been made within a particular period of time prior to an accident may warrant an inference that the defective condition existed long enough so that a person exercising reasonable care would have discovered it."

(*Ortega v. Kmart Corp*, *supra*, 26 Cal.4th at p. 1210, citing *Bridgman v. Safeway Stores, Inc.* (1960) 53 Cal.2d 443, 447.)

Government Code section 835.2 defines "notice," and provides notice can be either actual or constructive. The City contends there is no evidence to prove the element of the City's prior notice of a dangerous condition. The City has presented evidence to show it had no actual notice of an alleged dangerous condition before the incident. (Fact Nos. 28, 29, 32, 33, 37, 38, 39, 41, 42, 46, 47, 50-54, 60-66.)

On the issue of constructive notice, the City's citations include *Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, where the court explained the threshold elements of constructive notice as follows:

Whether the dangerous condition was obvious and whether it existed for a sufficient period of time are threshold elements to establish a claim of constructive notice. [Citation.] Where the plaintiff fails to present direct or circumstantial evidence as to either element, his claim is deficient as a matter of law. [Citation.]

(*Id.* at p. 317.) The City also cites *State v. Superior Court for San Mateo County* (1968) 263 Cal.App.2d 396, where the appellate court found the trial court erred in denying summary judgment because the plaintiff had failed to establish that a dangerous condition existed for a sufficient length of time:

The primary and indispensable element of constructive notice is a showing that the *obvious condition existed a sufficient period of time before the accident*. [Citation.] Here, there was no evidence (direct or circumstantial) that the danger was obvious nor that the situation had existed for any particular length of time before the accident. Thus, we hold, *as a matter of law*, that the requirements of constructive notice, as defined in 835.2, subdivision (b), were not met.

(*Id.* at p. 400, italics original.)

Here, the City meets its initial burden to show Plaintiff has no direct or circumstantial evidence as to either threshold element—the alleged obvious dangerous condition or the period of time such a condition existed. (Fact Nos. 27, 28, 46, 47, 48 [Plaintiff has no evidence of how long any alleged water was present before his fall], 49, 55, 56[.]) Therefore, Plaintiff cannot prove the essential element that the City had actual or constructive knowledge of the alleged dangerous condition.

In summary, the City presents evidence to show the alleged condition was not dangerous as a matter of law. Not only is the condition not dangerous, but the City had no actual notice and no constructive notice of the alleged condition, and no knowledge that a City employee created the alleged condition. Because the City meets its initial burden to show Plaintiff cannot establish at least one essential element of his third cause of action for premises liability, the burden shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff Fails to Raise a Triable Issue of Material Fact

A party opposing summary judgment must present admissible evidence, including "declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice" must or may 'be taken.'" (*Aguilar, supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) Code of Civil Procedure section 437c, subdivision (p)(2) sets forth a plaintiff's burden after a defendant meets the initial burden to prove at least one element of a cause of action cannot be established:

Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff . . . shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party opposing summary judgment must also submit a properly-formatted separate statement. California Rules of Court, rule 3.1350, (f)(2) provides that on the right side of the separate statement, "directly opposite the recitation of the moving party's statement of material facts and supporting evidence," the opposing party's response "must unequivocally state whether that fact is 'disputed' or 'undisputed.'" Furthermore, the "opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted."

The purpose of the separate statement is to assist the court to determine whether a case presents triable material issues of fact:

As we mentioned, one of the purposes of the separate statement is "to permit the trial court to focus on whether [the material] facts are truly undisputed." [Citation.] This can only be accomplished by both parties preparing the separate statement according to the statute and Rules of Court and acting in good faith. The moving party must include only *material* statements of fact, not incidental and background facts. The opposing party must concede facts that are truly undisputed and only add facts that are material. It is difficult to conceive of a properly drafted separate statement that includes over 600 paragraphs of undisputed material facts.

Trial courts [fn] should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate

statement – and an inappropriate separate statement includes an overly long document that includes multiple nonmaterial facts in violation of the Rules of Court. Courts should also not hesitate to disregard attempts to game the system by the opposing party claiming facts are “disputed” when the uncontroverted evidence clearly shows otherwise.

(*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876.)

Here, the court finds Plaintiff fails to submit a proper response to the City's separate statement of undisputed material facts, because Plaintiff fails to respond to each fact listed by Plaintiff by *unequivocally* stating whether the fact is disputed or undisputed in the two-column format required by California Rules of Court, rule 3.1350. “Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd. (b)(3).) As the City points out in its reply, Plaintiff fails to produce any evidence that establishes a triable issue of fact. Instead, Plaintiff often simply copies and pastes the same lengthy response challenging the credibility of the bus driver based on speculation. By doing so, Plaintiff submits an overly-long 66-page separate statement that obscures the issues, rather than assisting the court to determine whether the facts are truly undisputed.

As the City explains in its reply, Plaintiff fails to raise a triable issue of material fact:

Here, Plaintiff's opposition rests exclusively on improper argument, speculation, and attacking the credibility of Mr. Gumbs [the bus driver]. Plaintiff cites no evidence in [his] opposition or opposing separate statement to create a triable issue of fact. The party opposing summary judgment “must produce evidence showing some triable issue of material fact” and cannot base their opposition solely on speculation or “den[ial of] the credibility of the [defendant's] witnesses.” (*Eng v. Opperman* (2025) 117 Cal.App.5th 354, 376.) Plaintiff essentially states that the entirety of Mr. Gumbs declaration should be disregarded because he states he performed his inspection at 7:18 and Plaintiff, without any evidence, speculates that he wrote 4:18 instead of 7:18 on his inspection sheet. While Plaintiff has no evidence that it was actually a 4 instead of a 7, it is nonetheless immaterial and does not create a triable issue of material fact. Whether Mr. Gumbs [sic] initial inspection occurred at 4:18 or 7:18, there is no dispute that an inspection took place (Ex. E para 8-15); there is also no dispute that Mr. Gumbs was regularly checking the front entrance of the bus throughout his shift and never saw any water (Ex. E para 9, 14-15); there is also no dispute that Mr. Gumbs, per his training, would indicate any defective items observed throughout his shift on the inspection card and that “any defects or slip hazards would be noted on the daily inspection report” and no defects were noted at any time (Ex. E. para 15). Plaintiff merely states that there is a time discrepancy so none of his declaration should be believed. Despite this, Plaintiff has no dispute that if there was a slip hazard or other defect observed at anytime it would have been noted and there were no notations which leads to the reasonable inference that there were no defects on the bus. That in combination with Mr. Gumbs' inspection of the area shortly after the incident (UMF 28-29), showing it was

dry is sufficient evidence that there was no defect, which shifts the burden to Plaintiff to provide evidence of a defect, which Plaintiff fails to do.

Evidentiary Objections

The court declines to rule on Plaintiff's evidentiary objections because none are material to the disposition of the City's motion. (Code Civ. Proc., § 437c, subd. (a)). Furthermore, objections must be submitted in the proper format required by California Rules of Court, rule 3.1354 (filed separately, numbered consecutively, quoting the objectionable material, and clearly stating the grounds for objections).

Here, in addition to submitting an improperly-formatted separate statement, Plaintiff submits improperly-formatted evidentiary objections to case law (objection nos. 1-3), and also refers to nonexistent evidentiary objections in the separate statement (objection nos. 4-8).

Conclusion

The court finds the City meets its initial burden to show Plaintiff cannot prove at least one essential element of each cause of action. The burden then shifts to Plaintiff to raise a triable issue of material fact, which he fails to do. Therefore, the court grants the motion by the City for summary judgment. In addition, the court exercises its discretion to grant the City's motion for summary judgment for the independent reason that Plaintiff has submitted a non-compliant separate statement.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 9-2-26
(Judge's initials) (Date)